

The Court denies the motion for protective order but grants the motion to compel her deposition with limits that will accommodate Plaintiff's mental state as indicated above.

5.

| CASE #      | CASE NAME                                                                                | HEARING NAME                                                            |
|-------------|------------------------------------------------------------------------------------------|-------------------------------------------------------------------------|
| CVRI2306307 | JANE DOE VS STATE OF CALIFORNIA, BY AND THROUGH DEPARTMENT OF EDUCATION, A PUBLIC ENTITY | MOTION TO COMPEL PRODUCTION OF DOCUMENTS IN COMPLIANCE WITH COURT ORDER |

**Tentative Ruling:**

This matter was continued, and Defendants were ordered to submit a supplemental privilege log by 6/26/26. As of 6/24/26, no privilege log has been provided. On June 23 the Court signed a stipulation by the parties extending timelines and deadlines.

6.

| CASE #      | CASE NAME                                   | HEARING NAME                        |
|-------------|---------------------------------------------|-------------------------------------|
| CVRI2402001 | NICKERSON VS AMERICAN HONDA MOTOR CO., INC. | MOTION TO COMPEL VEHICLE INSPECTION |

**Tentative Ruling:**

This is a lemon law action. On April 15, 2024, Plaintiff Jaelynne Nickerson ("Plaintiff") filed a Complaint against Defendant American Honda Motor Co., Inc. ("Defendant") for: (1) breach of express warranty in violation of the Song Beverly Act; and (2) breach of implied warranty in violation of the Song Beverly Act. In the Complaint, Plaintiff alleges that on November 17, 2022, she purchased a 2023 Honda HR-V (the "Vehicle"), on which Defendant issued a warranty. (Complaint at ¶¶ 8, 16.) The Vehicle was delivered to Plaintiff with defects and nonconformities that impaired the use, value, and safety of the Vehicle. (Complaint at ¶ 17.) Plaintiff brought the Vehicle to Defendant's authorized repair facility for repairs, and Defendant could not conform the Vehicle to the warranty within a reasonable number of attempts. (Complaint at ¶¶ 18-19.) Defendant failed to provide restitution. (Complaint at ¶ 20.)

On February 28, 2025, Defendant served a notice of vehicle inspection on Plaintiff, with the inspection to take place on March 31, 2025. On March 26, 2025, Plaintiff served objections to the inspection notice. On July 17, 2025, Defendant served an amended notice of vehicle inspection for August 5, 2025. On August 1, 2025, Plaintiff again served objections. In December 2025, Defendant asked Plaintiff to provide available dates for the vehicle inspection, and Plaintiff stated that the discovery cut-off had already passed. The trial was continued for a short time, and in February 2026, the

parties agreed on February 18, 2026 for the vehicle inspection, but Defendant's expert got sick and could not attend.

Defendant now moves for an order compelling Plaintiff to produce her Vehicle for inspection and seeks \$980 in sanctions.

In a limited opposition, Plaintiff argues that the inspection occurred on May 15, 2026, so the motion is moot, and Defendant agreed to take the motion off calendar, then failed to do so.

### **Analysis**

Pursuant to C.C.P. § 2031.010(a) “[a]ny party may obtain discovery ... by inspecting, copying, testing, or sampling documents, tangible things, land or other property, and electronically stored information in the possession, custody, or control of any other party to the action.” A party may demand that any other party allow the party to enter on any land or other property that is in the possession, custody, or control of the party on whom the demand is made, and to inspect to measure, survey, photograph, test, or sample the land or other property, or any designated object or operation on it. (C.C.P. § 2031.010(d).) Additionally, pursuant to C.C.P. § 2031.020(a), “[a] defendant may make a demand for inspection, copying, testing, or sampling without leave of court at any time.” If the responding party fails to serve a timely response to an inspection demand, the demanding party may move to compel a response. (C.C.P. § 2031.300(a).)

In the present case, Plaintiff contends that the inspection of her Vehicle occurred on May 15, 2026. Defendant does not dispute this. As the inspection already occurred, this motion is moot. Furthermore, there are no grounds for sanctions. Accordingly, the motion is denied.

7.

| CASE #      | CASE NAME                                         | HEARING NAME                         |
|-------------|---------------------------------------------------|--------------------------------------|
| CVRI2503513 | COUNTY OF RIVERSIDE<br>VS TSC STATION<br>LLCJONES | MOTION FOR PRELIMINARY<br>INJUNCTION |

### **Tentative Ruling:**

The Motion for Preliminary Injunction is unopposed. Accordingly, the motion is granted. The Court has signed the submitted proposed Order. Moving party to give notice of ruling.